

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

WAY2Go CARGO CORP., *Complainant*

v.

OAK WAY CARGO, LLC, *Respondent*.

DOCKET NO. 25-14

Served: March 10, 2026

ORDER OF: Richard AMBROW, *Administrative Law Judge*.

**ORDER GRANTING IN PART AND DENYING IN PART COMPLAINANT’S MOTION TO OVERRULE
RESPONDENT’S OBJECTIONS AND COMPEL BETTER ANSWERS**

On February 24, 2026, Complainant filed its Motion to Overrule Respondent’s Objections and Compel Better Answers (“MTO”). On March 3, 2026, Respondent filed Respondent Oak Way Cargo, LLC’s Response in Opposition to Complainant’s Motion to Overrule Respondent’s Objections and Compel Better Answers (“MTO Opp.”).

I. BACKGROUND

By way of background, on July 25, 2025, Complainant Way2Go Cargo Corp. (“Complainant” or “W2G”) filed a complaint naming Oak Way Cargo, LLC (“Respondent” or “Oak Way”) and alleging that Respondent is operating as an ocean transportation intermediary (“OTT”) without a license from the Commission in violation of 46 U.S.C. § 40901(a).

On August 25, 2025, Respondent filed an unsuccessful motion to dismiss. (*See* Respondent’s Motion to Dismiss Complainant’s Complaint (“MTD”)). In it, Respondent noted that these parties have been involved in several lawsuits in both state and U.S. District Court in Florida. (MTD, at 2; *see also* Respondent’s Reply in Support of Motion to Dismiss Complainant’s Complaint, at 2). Respondent filed an answer and affirmative defenses on September 29, 2025.

In the MTO, Complainant asserts that Respondent either refused to Answer, or gave inadequate Answers, to several interrogatories, and refused to provide productions in response to Requests for Production (“RFPs”).

II. ANALYSIS

In Commission proceedings, generally, parties may obtain discovery regarding any nonprivileged matter that is relevant to any party’s claim or defense—including the existence, description, nature, custody, condition, and location of any documents or other tangible things and the identity and location of persons who know of any discoverable matter. (46 C.F.R.

§ 502.141(e)(1)). Relevant information need not be admissible at hearing if the discovery appears reasonably calculated to lead to the discovery of admissible evidence. (*Id.*). Discovery may be limited where it is unreasonably cumulative or duplicative, or where the burden or expense of the proposed discovery outweighs its likely benefit considering the needs of the proceeding, the amount in controversy, the parties' resources, the importance of the issues at stake in the action, and the importance of the discovery in resolving the issues. (46 C.F.R. §§ 502.141(e)(2)(A) and (C)). Interrogatories are limited to 50, including all discrete subparts. (46 C.F.R. § 502.145(a)). Objections to interrogatories must be stated with specificity. (46 C.F.R. § 502.145(b)(4)).

A party may file a motion to compel answers to interrogatories or document requests, and the motion must include: a certification that the moving party has conferred in good faith in an effort to obtain compliance without the need for a motion, a copy of the disputed requests, a copy of any answer provided, the certificate of service that accompanied the discovery requests, and any supporting argument. (46 C.F.R. § 502.150 (a)(2)).

Complainant organized its MTO by identifying groups of Interrogatories and RFPs, and making arguments about all of them. Respondent responded in a similar manner. I will address the arguments as grouped by the parties.

A. Relevance

Complainant asserts that Respondent improperly objected to Interrogatory Nos. 1, 6, 7, 10, 16, and 20, as well as RFP Nos. 17, 18, 21, 23, and 38 on relevance grounds. Complainant argues that these discovery requests seek information about Respondent's structure, noting that Respondent's owner testified in a related matter that Respondent was an agent of a foreign NVOCC. Complainant argues that the agency relationship between Respondent and the NVOCC are directly relevant. (MTO, at 2-3). Respondent argues that these Interrogatories and RFPs are not relevant to the central issue in this case, *i.e.*, whether Respondent acted as an OTI without a license. (MTO Opp., at 2-3).

INTERROGATORY NO. 1: Identify all persons who have served as officers, directors, managers, or agents of Oak since its formation.

RESPONSE: Oak Way objects to this Interrogatory as to relevance. Claimant asserts one claim in this action under 46 U.S.C. § 40901(a), which provides that a person "may not advertise, hold oneself out, [or] act as an ocean transportation intermediary unless the person holds an ocean transportation intermediary's license issued by the Federal Maritime Commission." The identities of all officers, directors, managers, or agents of Oak Way since its formation have no bearing on whether Oak Way engaged in conduct prohibited by § 40901(a).

INTERROGATORY NO. 6: Describe in detail Oak's role, including a description of its responsibilities, obligations and rights, as agent of Oak Bridge Way.

RESPONSE: Oak Way objects to this interrogatory as irrelevant to the claims at issue. The relationship between Oak Way and Oak Bridge Way is not before the

FMC and is not alleged to be part of the conduct at issue. Subject to and without waiver of the objection above, Oak Way acts as an agent [of] NVOCCs and does not hold itself out to the general public to provide transportation or assume responsibility for the transportation from the port or point of receipt to the port or point of destination.

INTERROGATORY NO. 7: Describe in detail Oak’s relationship, ownership structure, and operational integration with Oak Bridge Way, including shared personnel, shared platforms, and shared clients, from January 1, 2025 to the present.

RESPONSE: Oak Way objects to this Interrogatory as irrelevant to the claims at issue. The relationship between Oak Way and Oak Bridge Way is not before the FMC and is not alleged to be part of the conduct at issue. Claimant asserts one claim in this action under 46 U.S.C. § 40901(a), which provides that a person “may not advertise, hold oneself out, [or] act as an ocean transportation intermediary unless the person holds an ocean transportation intermediary’s license issued by the Federal Maritime Commission.” The relationship, ownership structure, and operational integration with Oak Bridge Way, including shared personnel, shared platforms, and shared clients, has no bearing on whether Oak Way engaged in conduct prohibited by § 40901(a).

INTERROGATORY NO. 10: Identify all clients, agents, shippers, consignees, or vendors with whom Oak Bridge Way has worked with for the Relevant Time Period using Way2Go’s identity, credentials, or FMC license, including the nature and dates of each transaction.

RESPONSE: Oak Way objects to this Interrogatory as irrelevant. Oak Bridge Way is not a party to this administrative proceeding and is not before the Federal Maritime Commission. Claimant’s Complaint alleges a single violation against Oak Way under 46 U.S.C. § 40901(a), and information concerning the clients, agents, shippers, consignees, or vendors of a non-party entity has no bearing on that claim.

INTERROGATORY NO. 16: Identify and provide a description of work done by any Oak and Oak Bridge Way employees, contractors, agents, or principals who worked on or had any involvement with Way2Go shipments that Way2Go Cargo LTDA or Nanoei Alves authorized Oak to take over, complete, release, manage, or otherwise handle.

RESPONSE: Oak Way objects to this Interrogatory to the extent it seeks information regarding Oak Bridge Way employees, contractors, agents, or principals. Oak BridgeWay is not a party to this proceeding, and its personnel and activities are outside the scope of Claimant’s administrative complaint.

Oak Way further objects to this Interrogatory as vague and overbroad. The phrase “work done” is undefined and not limited in scope, time, subject matter, or relevance, rendering it unclear what information is being sought.

INTERROGATORY NO. 20: Identify all instances in which Oak, Oak Bridge Way, or any employee or agent removed, omitted, or altered Way2Go’s FMC license number on any documentation, including House Bills of Lading, rate quotes, or shipment instructions.

RESPONSE: Oak Way objects to this Interrogatory to the extent it seeks information regarding Oak Bridge Way employees or agents. Oak Bridge Way is not a party to this proceeding, and its personnel and activities are outside the scope of Claimant’s administrative complaint. Oak Way further objects to this Interrogatory as irrelevant and overbroad. The Interrogatory improperly seeks information about “all instances” in which Oak Way or any related person did *not* use Way2Go’s FMC license number, which has no bearing on Claimant’s sole allegation that Oak Way acted as an unlicensed ocean transportation intermediary under 46 U.S.C. § 40901(a). Oak Way further objects that the Interrogatory is unduly burdensome, as it would require Oak Way to identify and analyze every shipment document where Way2Go’s license number did not appear.

REQUEST NO. 17: All documents and communications relating to the removal of Way2Go’s FMC license number from shipping documentation, including but not limited to communications to or from Oak Bridge Way employees, instructions, or policies.

RESPONSE: Respondent objects to this Request as irrelevant. The removal of Way2Go’s FMC license number has no bearing on whether Respondent acted as an unlicensed OTI under 46 C.F.R. § 40901(a).

REQUEST NO. 18: All communications with Oak Bridge Way, its principals and employees, regarding Way2Go’s ShipThis account.

RESPONSE: Oak Way objects to this Request as overbroad, vague, and irrelevant. Claimant asserts one claim in this action under 46 U.S.C. § 40901(a), which provides that a person “may not advertise, hold oneself out, [or] act as an ocean transportation intermediary unless the person holds an ocean transportation intermediary’s license issued by the Federal Maritime Commission.” Communications with Oak Bridge Way regarding Way2Go’s ShipThis account have no bearing on that claim.

REQUEST NO. 21: All documents and communications relating to Oak’s relationship with Oak Bridge Way, including but not limited to all contracts, agency agreements, service agreements, shipping agreements, and internal memorandum.

RESPONSE: Respondent objects to this Requests as irrelevant, harassing, and outside the scope of permissible discovery and the Commission’s jurisdiction. All contracts, agency agreements, service agreements, shipping agreements, and internal memorandum with Oak Bridge Way have no bearing on whether Respondent violated 46 C.F.R. § 40901(a). Subject to and without waiving these objections, Respondent will produce documents within its possession, custody, and control sufficient to show the existence of an agency relationship between Respondent and Oak Bridge Way.

REQUEST NO. 23: All documents reflecting or evidencing the ownership, control, or management structure of Oak, including but not limited to organizational charts, operating agreements, and lists of officers, directors, or managers.

RESPONSE: Respondent objects to this Request as irrelevant and harassing. Corporate ownership, governance, and management structure do not implicate 46 C.F.R. § 40901(a) and do not establish whether Respondent acted as an unlicensed OTI.

REQUEST NO. 38: All bills of lading created by Oak or Oak Bridge Way that omit a FMC license or registration number.

RESPONSE: Respondent objects to this request to the extent it seeks documents created by Oak Bridge Way, an entity that is not before this Commission. Oak further objects because it overbroad is not relevant to Plaintiffs’ claims in this action—as it is not limited to shipments using Way2Go’s credentials.

In general, the party moving to compel discovery generally has the burden of proving that the answers were incomplete. (*Williams v. Ct. Servs. & Offender Supervision Agency*, No. 08-CV-1538 (RWR-AK), 2013 WL 12321547, at *2 (D.D.C. Mar. 25, 2013)).

Almost all of these Interrogatories or RFIs reference Oak Bridge Way, who is apparently a third party NVOCC for whom Respondent allegedly acts as an agent. Complainant does not persuade me regarding the relevance of Oak Bridge Way. An OTI may utilize a non-licensed agent. (*See Landstar Exp. Am., Inc. v. Fed. Mar. Comm’n*, 569 F.3d 493, 494 (D.C. Cir. 2009) (holding that the Commission lacked authority to require agents of OTIs to obtain licenses); *see also OJ Commerce v. Hamburg Südamerikanische Dampfschiffahrts-Gesellschaft A/S & C., KG and Hamburg Sud North American, Inc.*, Dkt. No. 21-11, 2024 WL 4034610, at *1 n.2 (FMC Aug. 27, 2024) (“The ALJ denied all claims against HSNA because it found HSNA not to be a common carrier, instead HSNA was acting as a disclosed agent on behalf of HSDG. I.D. at 37. Neither side challenged this conclusion, and no evidence suggests it should be reviewed. . . .”)). The key issue is whether Respondent itself acts as an OTI without a license. Therefore, Interrogatories or RFPs that focus on Oak Bridge Way’s operations, or the relationship between Respondent and Oak Bridge Way are not discoverable. Accordingly, the MTO is **DENIED** as to the following Interrogatories and RFPs, which focus on either Oak Bridge Way’s operations, or the relationship between Respondent and Oak Bridge Way: Interrogatory Nos. 6, 7, and 10, as well as RFP No. 21.

The MTO is **GRANTED** as to Interrogatory No. 1 and RFP No. 23. Although the identity of Respondent's officers, directors, managers, or agents, or its ownership, control, or management structure is not directly relevant to the ultimate issue, this Interrogatory and this RFP appears to be reasonably calculated to lead to the discovery of admissible evidence. The individuals who will be identified in response to this Interrogatory and this RFP appear to be potentially relevant witnesses.

The MTO is **GRANTED IN PART** as to Interrogatory Nos. 16, and 20, as well as RFP Nos. 17, 18, and 38. These Interrogatories and RFPs are to be read as making NO REFERENCE to Oak Bridge Way (or "to or from" or "with" Oak Bridge Way, or Oak Bridge Way's principals, employees, contractors and agents). The remainder of the identified Interrogatories and RFPs appear to seek information reasonable calculated to lead to the discovery of admissible evidence as to the ultimate issue in this case.

B. Relevance, Proportionality and Harassment

Complainant asserts that Respondent improperly objected to Interrogatory Nos. 9, 12, 15, and 18, as well as RFP Nos. 2, 3, 12-20, 24, 25, 30, and 32-37, on relevance, proportionality, and harassment grounds. Complainant argues that these Interrogatories and RFPs "seek information necessary to determine whether Oak was carrying out" OTI functions, or representing itself as an OTI. (MTO, at 3). Respondent argues that Complainant needs to show that Complainant was harmed, therefore Complainant may not seek discovery unless it is related to Respondent's alleged use of Complainant's license. (MTO Opp., at 3-4). For support, Respondent cites the Order Denying Motion to Dismiss, which I issued on September 19, 2025 ("MTD Order"). (MTO Opp., at 4).

INTERROGATORY NO. 9: Identify all clients, agents, shippers, consignees, or vendors with whom Oak has done business for the Relevant Time Period using Way2Go's identity, credentials, or FMC license, including the nature and dates of each transaction.

RESPONSE: Respondent objects to this Interrogatory to the extent it seeks to require Respondent to create new documents, summaries, or compilations that do not already exist. Subject to and without waiving this objection, Respondent will produce non-privileged documents, if any, sufficient to show such transactions.

INTERROGATORY NO. 12: Identify all clients, common carriers, shippers, booking agents, brokers, or vendors that previously worked with Way2Go that Oak has worked with.

RESPONSE: Oak Way objects to this Interrogatory on the ground that it seeks information that is not relevant to the sole claim at issue in this proceeding. This action is not a business tort case, and the identity of entities that may have worked with both Way2Go and Oak Way has no bearing on whether Oak Way violated 46 U.S.C. § 40901(a).

INTERROGATORY NO. 15: Identify all Oak and Oak Bridge Way employees, contractors, agents, or principals who worked on or had any involvement with Way2Go shipments that Way2Go Cargo LTDA or Nanoei Alves authorized Oak to take over, complete, release, manage, or otherwise handle.

RESPONSE: Oak Way objects to this Interrogatory to the extent it seeks information regarding Oak Bridge Way employees, contractors, agents, or principals. Oak Bridge Way is not a party to this proceeding, and its personnel and activities are outside the scope of Claimant's administrative complaint. Oak Way further objects to this Interrogatory on the grounds that it is harassing and not propounded in good faith. The request appears designed not to obtain information relevant to Claimant's sole claim under 46 U.S.C. § 40901(a), but rather to identify additional individuals or entities for potential future litigation. Discovery may not be used as a fishing expedition to locate new targets for suit.

INTERROGATORY NO. 18: Identify all occasions on which Oak received pre-arrival notices, arrival notices, bills of lading, invoices, or other carrier documents that were addressed to Way2Go but delivered to Oak's email address, physical address, or employees. For each, Identify the date received, the sender, and the shipment involved.

RESPONSE: Oak Way objects to this Interrogatory as irrelevant, overbroad, and unduly burdensome. The Interrogatory is not tied to any alleged conduct by Oak Way that would constitute a violation of 46 U.S.C. § 40901(a), which is the sole claim asserted in this proceeding. Whether Oak Way may have received documents addressed to Way2Go does not establish that Oak Way acted as an ocean transportation intermediary without a license. Oak Way further objects because the Interrogatory improperly seeks to attribute to Oak Way the actions of unidentified third parties.

REQUEST NO. 2: All documents and communications between Oak and any third party, including but not limited to shippers, consignees, carriers, agents, or vendors, that include or reference Way2Go's identity, credentials, or FMC license.

RESPONSE: Respondent objects to this Request as overbroad, unduly burdensome, and irrelevant to the claim brought forth under § 40901(a). The Request improperly seeks third-party communications unrelated to licensure status. Notwithstanding these objections, Respondent will produce non-privileged documents in its possession, custody or control that include or reference Way2Go's FMC license.

REQUEST NO. 3: All shipping documents, including but not limited to bills of lading, consular documents, delivery orders, dock receipts, invoices, arrival notices, or pre-arrival notices, issued or received by Oak, or on Oak's behalf, that

include or reference Way2Go's name, identity, credentials, or FMC license, or omit such information, for the Relevant Time Period.

RESPONSE: Respondent objects to this Request as irrelevant, overbroad, and not proportional to the needs of this proceeding. The sole claim asserted in this action arises under 46 U.S.C. § 40901(a) and concerns whether Respondent acted as an ocean transportation intermediary without holding an FMC-issued license. Documents that omit Way2Go's name, identity, credentials, or FMC license are not relevant. Respondent further objects because the Request improperly seeks Respondent's own proprietary operational data. Notwithstanding these objections, Respondent will produce such non-privileged documents in its possession, custody or control that include or reference Way2Go's FMC license

REQUEST NO. 12: All contracts, agreements, or arrangements between Oak and any shipper, agent, consignee, or common carrier in which Oak used or referenced Way2Go's identity, credentials, or FMC license.

RESPONSE: Oak Way objects to this Request as overbroad, vague, and irrelevant. Claimant asserts one claim in this action under 46 U.S.C. § 40901(a), which provides that a person "may not advertise, hold oneself out, [or] act as an ocean transportation intermediary unless the person holds an ocean transportation intermediary's license issued by the Federal Maritime Commission." This Request is not limited to documents bearing on whether Respondent acted as an unlicensed OTI. Notwithstanding these objections, Respondent will produce non-privileged documents in its possession, custody or control that include or reference Way2Go's FMC license.

REQUEST NO. 13: All communications between Oak and any shipper, agent, consignee, or common carrier in which Oak used or referenced Way2Go's identity, credentials, or FMC license.

RESPONSE: Respondent objects to this Request as duplicative of Request No. 12. Oak Way objects to this Request as overbroad, vague, and irrelevant. Claimant asserts one claim in this action under 46 U.S.C. § 40901(a), which provides that a person "may not advertise, hold oneself out, [or] act as an ocean transportation intermediary unless the person holds an ocean transportation intermediary's license issued by the Federal Maritime Commission." This Request is not limited to documents bearing on whether Respondent acted as an unlicensed OTI. Notwithstanding these objections, Respondent will produce non-privileged documents in its possession, custody or control that include or reference Way2Go's FMC license.

REQUEST NO. 14: All contracts, agreements, or arrangements between Oak and any customers in which Oak used or referenced Way2Go's identity, credentials, or FMC license.

RESPONSE: Oak Way objects to this Request as overbroad, vague, and irrelevant. Claimant asserts one claim in this action under 46 U.S.C. § 40901(a), which provides that a person “may not advertise, hold oneself out, [or] act as an ocean transportation intermediary unless the person holds an ocean transportation intermediary’s license issued by the Federal Maritime Commission.” This Request is not limited to documents bearing on whether Respondent acted as an unlicensed OTI. Notwithstanding these objections, Respondent will produce non-privileged documents in its possession, custody or control that include or reference Way2Go’s FMC license.

REQUEST NO. 15: All communications between Oak and any customers in which Oak used or referenced Way2Go’s identity, credentials, or FMC license.

RESPONSE: Oak Way objects to this Request as overbroad, vague, and irrelevant. Claimant asserts one claim in this action under 46 U.S.C. § 40901(a), which provides that a person “may not advertise, hold oneself out, [or] act as an ocean transportation intermediary unless the person holds an ocean transportation intermediary’s license issued by the Federal Maritime Commission.” This Request is not limited to documents bearing on whether Respondent acted as an unlicensed OTI. Notwithstanding these objections, Respondent will produce non-privileged documents in its possession, custody or control that include or reference Way2Go’s FMC license.

REQUEST NO. 16: All communications with the Department of Homeland Security, U.S. Customs and Border Protection, or any other regulatory agency regarding shipments performed using Way2Go’s identity, credentials, or FMC license.

RESPONSE: Oak Way objects to this Request as overbroad, vague, and irrelevant. Claimant asserts one claim in this action under 46 U.S.C. § 40901(a), which provides that a person “may not advertise, hold oneself out, [or] act as an ocean transportation intermediary unless the person holds an ocean transportation intermediary’s license issued by the Federal Maritime Commission.” This Request is not limited to documents bearing on whether Respondent acted as an unlicensed OTI. Notwithstanding these objections, Respondent will produce non-privileged documents in its possession, custody or control regarding shipments performed using Way2Go’s FMC license.¹

REQUEST NO. 19: All documents and communications to third parties that include Way2Go’s name, logo, or branding.

RESPONSE: Oak Way objects to this Request as overbroad, vague, and irrelevant. Claimant asserts one claim in this action under 46 U.S.C. § 40901(a), which provides that a person “may not advertise, hold oneself out, [or] act as an

¹ RFP Nos. 17 and 18 are reproduced in the main text, at 4.

ocean transportation intermediary unless the person holds an ocean transportation intermediary's license issued by the Federal Maritime Commission." Branding, logos, and trade issues do not form any element of a claim under 46 C.F.R. § 40901(a).

REQUEST NO. 20: All documents and communications relating to any complaint, inquiry, or investigation by the FMC, U.S. Customs and Border Protection, or any other regulatory authority regarding Oak's operations.

RESPONSE: Respondent objects to this Request as overbroad and irrelevant to the claims in this action. The Request is not limited to the conduct alleged in the Complaint and instead seeks any regulatory interaction of any kind, regardless of relevance to 46 C.F.R. § 40901(a).

REQUEST NO. 24: All documents exchanged and communications with CMA CGM related to Way2Go or Way2Go's identity, credentials, or FMC license.

RESPONSE: Oak Way objects to this Request as overbroad, vague, and irrelevant. Claimant asserts one claim in this action under 46 U.S.C. § 40901(a), which provides that a person "may not advertise, hold oneself out, [or] act as an ocean transportation intermediary unless the person holds an ocean transportation intermediary's license issued by the Federal Maritime Commission." This Request is not limited to documents bearing on whether Respondent acted as an unlicensed OTI. Notwithstanding these objections, Respondent will produce non-privileged documents in its possession, custody or control that include or reference Way2Go's FMC license.

REQUEST NO. 25: All documents exchanged and communications with CMA CGM related to any shipments in which Way2Go appears as a consignee in the Pre-Arrival Notice prepared by CMA CGM.

RESPONSE: Oak Way objects to this Request as overbroad, vague, and irrelevant. Claimant asserts one claim in this action under 46 U.S.C. § 40901(a), which provides that a person "may not advertise, hold oneself out, [or] act as an ocean transportation intermediary unless the person holds an ocean transportation intermediary's license issued by the Federal Maritime Commission." This Request is not limited to documents bearing on whether Respondent acted as an unlicensed OTI. Notwithstanding these objections, Respondent will produce non-privileged documents in its possession, custody or control that include or reference Way2Go's FMC license.

REQUEST NO. 30: All documents and communications relating to any instructions, directives, or authorizations given by Oak to its employees, agents, or representatives regarding the use of Way2Go's identity, credentials, or FMC license and Way2Go's email addresses, equipment, ShipThis account, Intuit Quickbooks account, and any other Way2Go property.

RESPONSE: Oak Way objects to this Request as overbroad, vague, and irrelevant. Claimant asserts one claim in this action under 46 U.S.C. § 40901(a), which provides that a person “may not advertise, hold oneself out, [or] act as an ocean transportation intermediary unless the person holds an ocean transportation intermediary’s license issued by the Federal Maritime Commission.” This Request is not limited to documents bearing on whether Respondent acted as an unlicensed OTI. Notwithstanding these objections, Respondent will produce non-privileged documents in its possession, custody or control that include or reference Way2Go’s FMC license.

REQUEST NO. 32: All documents that Oak has prepared, received, or processed for shipments for which Way2Go or Oak appears as a consignee on any documentation, including but not limited to bills of lading, consular documents, delivery orders, or dock receipts.

RESPONSE: Oak Way objects to this Request as overbroad, vague, and irrelevant. Claimant asserts one claim in this action under 46 U.S.C. § 40901(a), which provides that a person “may not advertise, hold oneself out, [or] act as an ocean transportation intermediary unless the person holds an ocean transportation intermediary’s license issued by the Federal Maritime Commission.” This Request is not limited to documents bearing on whether Respondent acted as an unlicensed OTI.

REQUEST NO. 33: All documents that Oak has prepared, issued, or received related to coordinating logistics for shipments for which Way2Go or Oak appears as a consignee on any documentation, including but not limited to, ordering cargo to port, booking vessel space, arranging warehouse storage, or coordinating shipment movement from origin to vessel.

RESPONSE: Oak Way objects to this Request as overbroad, vague, and irrelevant. Claimant asserts one claim in this action under 46 U.S.C. § 40901(a), which provides that a person “may not advertise, hold oneself out, [or] act as an ocean transportation intermediary unless the person holds an ocean transportation intermediary’s license issued by the Federal Maritime Commission.” This Request is not limited to documents bearing on whether Respondent acted as an unlicensed OTI.

REQUEST NO. 34: All documents that Oak has prepared, issued, or received related to conducting administrative services for shipments for which Way2Go or Oak appears as a consignee on any documentation, including but not limited to, handling freight monies advanced by shippers, arranging cargo insurance, or providing advance notification to banks, consignees, and shippers.

RESPONSE: Oak Way objects to this Request as overbroad, vague, and irrelevant. Claimant asserts one claim in this action under 46 U.S.C. § 40901(a),

which provides that a person “may not advertise, hold oneself out, [or] act as an ocean transportation intermediary unless the person holds an ocean transportation intermediary’s license issued by the Federal Maritime Commission.” This Request is not limited to documents bearing on whether Respondent acted as an unlicensed OTI.

REQUEST NO. 35: All documents that Oak has prepared, issued, or received related to conducting transportation services for shipments for which Way2Go or Oak appears as a consignee on any documentation, including but not limited to purchasing transportation from common carriers and reselling to others, paying port-to-port charges, or arranging inland transportation.

RESPONSE: Oak Way objects to this Request as overbroad, vague, and irrelevant. Claimant asserts one claim in this action under 46 U.S.C. § 40901(a), which provides that a person “may not advertise, hold oneself out, [or] act as an ocean transportation intermediary unless the person holds an ocean transportation intermediary’s license issued by the Federal Maritime Commission.” This Request is not limited to documents bearing on whether Respondent acted as an unlicensed OTI.

REQUEST NO. 36: All documents that Oak has prepared, issued, or received related to conducting commercial operations for shipments for which Way2Go or Oak appears as a consignee on any documentation, including but not limited to entering into affreightment agreements with shippers, issuing bills of lading, collecting freight monies, or paying compensation to freight forwarders.

RESPONSE: Oak Way objects to this Request as overbroad, vague, and irrelevant. Claimant asserts one claim in this action under 46 U.S.C. § 40901(a), which provides that a person “may not advertise, hold oneself out, [or] act as an ocean transportation intermediary unless the person holds an ocean transportation intermediary’s license issued by the Federal Maritime Commission.” This Request is not limited to documents bearing on whether Respondent acted as an unlicensed OTI.

REQUEST NO. 37: All documents that Oak has prepared, issued, or received related to conducting operational support activities for shipments for which Way2Go or Oak appears as a consignee on any documentation, including but not limited to assisting with customs clearance, coordinating shipment movements, leasing containers, or establishing arrangements with origin or destination agents.

RESPONSE: Oak Way objects to this Request as overbroad, vague, and irrelevant. Claimant asserts one claim in this action under 46 U.S.C. § 40901(a), which provides that a person “may not advertise, hold oneself out, [or] act as an ocean transportation intermediary unless the person holds an ocean transportation intermediary’s license issued by the Federal Maritime Commission.” This

Request is not limited to documents bearing on whether Respondent acted as an unlicensed OTI.

In general, Respondent either objects to these Interrogatories and RFIs, or to the extent it agrees to produce information, it agrees to produce only documents that include or reference Complainant's FMC license number. (*See, e.g.*, Response to RFP No. 2). Respondent argues that any purported violations by Respondent are relevant only if they harmed Complainant. (MTO Opp., at 3-4). Respondent also argues that Complainant seeks documents that are not related to Complainant, such as complaints to a government agency about Respondent.

Respondent's arguments are off-mark. Determining whether a respondent is acting as an OTI is a fact intensive inquiry. (*Worldwide Relocations, Inc., Possible Violations of Sections 8, 10, and 19 of the Shipping Act of 1984 As Well As The Commission's Regulations at 46 C.F.R. 515.13, 515.21, and 520.3*, Dkt. No. 06-01, 2012 WL 11914713, at *5 (FMC, Mar. 15, 2012)). For example, to determine whether an entity is an NVOCC, a fact finder should consider, among other things, its advertisement to the general public. (*Id.*, at *6). Based on that advertising, the fact finder can fairly make presumptions about what an entity does. (*Id.*, at *8). Also, an entity's routine practice can be evidence of how it acted in a particular case. (*Id.*).

Based on the Commission's decision in *Worldwide*, I find that how Respondent interacts with third parties, including in its advertising and how it conducts its operations, can be relevant to the ultimate inquiry in this case. In other words, because the determination of whether an entity is a common carrier partly depends on how the entity holds itself out to the public (46 U.S.C. § 40102(7)), almost any communication between Respondent and any third party is potentially relevant. Also, because NVOCCs perform a variety of duties, such as issuing bills of lading, entering affreightment agreements, assisting with customs clearance, and paying lawful compensation to freight forwarders (*see* 46 C.F.R. § 515.2(k)), the services Respondent provides are generally relevant. Thus, contrary to Respondent's position, inquiries from a government agency, such as U.S. Customs and Border Patrol, may be relevant to the extent it describes how Respondent is performing services, such as assistance with customs clearance.

Respondent asserts that the requests sought are disproportional to the needs of the case, especially considering that Complainant cannot articulate its damages. As noted in the MTD Order, however, a complainant does not necessarily need to seek reparations in order to bring a complaint. (MTD Order, at 4). In any event, while the initial burden of showing the relevance of a discovery request lies with the party seeking discovery, the party objecting to discovery has the burden of showing the request is burdensome, overly broad, vague, or outside the scope of discovery. (*TZ SSE Buyer, LLC v. COSCO Shipping Lines Co., LTD.*, Dkt. No. 24-09, 2025 WL 1454511, at *4 (ALJ May 15, 2025)). Respondent would need to show that the burden on it is disproportional, not just make the assertion. (*See, e.g., PKDC, LLC v. CMA CGM S.A.*, Dkt. No. 24-21, 2025 WL 1706539 (ALJ, Jun. 9, 2025) (denying motion to compel in part where respondent demonstrated the burden by means of a declaration)).

Based on my above analysis, the MTO is **GRANTED** as to Interrogatory Nos. 12 and 18, and RFP Nos. 2, 3, 12, 13, 14, 15, 16,² 19, 20, 24, 25, 30, 32, 33, 34, 35, 36, and 37.

In response to several of the RFPs identified in the previous paragraph, Respondent stated it would produce documents that contain Complainant's license number. (*See, e.g.*, Respondent's Response to RFP No. 12, found attached to the MTO, at Ex. C ("Respondent will produce non-privileged documents in its possession, custody or control that include or reference Way2Go's FMC license.")). This is an insufficient response. Complainant alleges that Respondent has been using Complainant's license number and identity. (*See* Complaint, ¶ 10). Complainant also alleges Respondent has created documents that omit Complainant's license number to evade detection. (*Id.*, at ¶ 12). In light of these allegations, not only would documents that contain Complainant's license be responsive to RFP No. 12 (*i.e.*, contracts between Respondent and third parties in which Respondent "referenced" Complainant's "identity, credentials or FMC license"), but so would documents that reference Complainant's identity but not Complainant's license. Therefore, Respondent may not limit its responses to the RFPs identified in the previous paragraph to only those documents that include or reference Complainant's FMC license.

To the extent Respondent chooses to answer interrogatories by means of the production of business records, it must comply with the requirements of Commission Rule 205(d). (46 C.F.R. § 502.145(d)).

Consistent with my discussion above, the MTO is **GRANTED IN PART** as to Interrogatory No. 15. That Interrogatory is to be read as making NO REFERENCE to Oak Bridge Way (or Oak Bridge Way's employees, contractors, agents, and principals). The remainder of the identified Interrogatory appears to seek information reasonably calculated to lead to the discovery of admissible evidence, such as the identity of potential witnesses.

The MTO is **DENIED WITHOUT PREJUDICE** as to Interrogatory No. 9. Respondent indicated that it will produce non-privileged documents sufficient to answer this Interrogatory.

C. Financial Information

Complainant seeks a response to RFP Nos. 5, 6, and 29. Those RFPs seek information about bank accounts and financial transactions. Respondent challenges these requests on the basis of relevance and overbreadth.

REQUEST NO. 5: All communications by Oak and any third party, instructing clients, vendors, or other third parties to remit payment to any bank account not controlled by Way2Go, for shipments either initiated by Way2Go or shipments using Way2Go's identity, credentials, or license.

RESPONSE: Respondent objects because the Request assumes disputed facts, including that Respondent instructed third parties to remit payments in a manner improper or inconsistent with Way2Go's control, or that any shipments were performed using Way2Go's identity, credentials, or license. Respondent further

² The MTO was previously granted in part as to RFP Nos. 17 and 18.

objects because the Request improperly seeks financial and banking information, including communications involving third parties and accounts not within Respondent's possession, custody, or control.

REQUEST NO. 6: All documents relating to the application for, creation, opening, or use of any bank account in the name of Way2Go by or for the benefit of Oak, Oak Bridge Way, Raphael Alves, Diego Santana, or any other Oak principal.

RESPONSE: Respondent objects to this Request as irrelevant. The sole claim asserted in this action arises under 46 U.S.C. § 40901(a) and concerns whether Respondent acted as an ocean transportation intermediary without holding an FMC-issued license. The opening of a bank account has no bearing on this issue.

REQUEST NO. 29: All documents and communications relating to any payments, commissions, or compensation received by Oak, its principals, or affiliates in connection with shipments, contracts, or transactions in which Way2Go's identity, credentials, or FMC license was used.

RESPONSE: Respondent objects because this request is overbroad and not proportionate to the needs of the case. Oak will produce non-privileged documents in its possession, custody or control sufficient to show payment received by Oak in connections with transactions in which Way2Go's FMC license was used.

In general, as noted above, Complainant's theory is that Respondent essentially co-opted Complainant's identity and resources to conduct Respondent's business. (*See Complaint*, ¶¶ 10, 12). Therefore, a request seeking communications between Respondent and a third party asking the third party to pay Respondent for a shipment using Complainant's FMC license number may lead to the discovery of admissible evidence.

Respondent also argues that RFP No. 6, which seeks documents related to bank accounts opened in Complainant's name for the benefit of various individuals, could include retirement accounts. (MTO, Opp., at 4). I appreciate that point. Nevertheless, the burden of production on an overbreadth objection is on the party making the objection. (*TZ SSE Buyer*, 2025 WL 1454511, at *4). There is no evidence in the record that Complainant set up a retirement account for any individual.

Accordingly, the MTO is **GRANTED** as to RFP Nos. 5 and 29.

The MTO is **GRANTED IN PART** as to RFP No. 6, except it will be understood as NOT REFERRING to Oak Bridge Way.

D. Respondent's OTI Application

Complainant seeks responses to Interrogatory No. 13, and RFP No. 4, which seek information about Respondent's application for an OTI license from the Commission, arguing it contradicts Respondent's defense that it is merely an agent of a third party. (MTO, at 4).

INTERROGATORY NO. 13: Describe in detail the events surrounding Oak's FMC license application, including but not limited to the application's current status and the reason for such status.

RESPONSE: Oak Way objects to this Interrogatory on the grounds that it is vague and ambiguous as to the phrase "events surrounding" the FMC license application, which is undefined and subject to multiple interpretations. Oak Way further objects on the ground that the information sought is not relevant to Claimant's sole claim, as the details of Oak Way's purported FMC license application have no bearing on whether Oak Way violated 46 U.S.C. § 40901(a).

REQUEST NO. 4: All documents relating to Oak's application for an FMC license, including correspondence with the FMC, supporting materials, and internal documents.

RESPONSE: Respondent objects to this Request as irrelevant, overbroad, and harassing. The internal documents related to Respondent's license application have no bearing on whether Respondent used Way2Go's FMC license without authorization.

The MTO is **DENIED** as to Interrogatory No. 13 and RFP No. 4. The fact that Respondent may have applied for an OTI license is not necessarily indicative of whether Respondent is currently acting as an OTI. Even if Respondent is acting as an unlicensed agent for a licensed NVOCC right now, the fact that Respondent may have applied for an OTI license does not appear to be relevant.

E. Complainant Seeks Better Answers

Complainant seeks better answers to Interrogatory Nos. 2, 3, 4, 5, 8, 11, 14, 17, 18 and 19. (MTO, at 4). Respondent asserts that these Interrogatories seek information that Respondent should not be required to provide, and some presuppose facts.

INTERROGATORY NO. 2: Describe all steps taken by Oak after being served with the Complaint to stop using Way2Go's identity, credentials, or FMC license on shipments, and Identify all persons involved in those steps.

RESPONSE: Oak Way objects to this interrogatory because it presupposes that Oak was using Way2Go's identity, credentials, or FMC license on shipments.

INTERROGATORY NO. 3: Describe in detail Oak's role, including a description of its responsibilities, obligations and rights, in any shipments for which it is designated as a notify party on documentation for said shipments.

RESPONSE: Oak Way objects to this interrogatory because it presupposes that Oak is designated as a notify party on documentation for shipments. Subject to and without waiver of the objection above, Oak Way acts as an agent NVOCCs and does not hold itself out to the general public to provide transportation or

assume responsibility for the transportation from the port or point of receipt to the port or point of destination.

INTERROGATORY NO. 4: Describe in detail Oak's role, including a description of its responsibilities, obligations and rights, in any shipments for which it is designated as a consignee on documentation for said shipments.

RESPONSE: Oak Way objects to this interrogatory because it presupposes that Oak is designated as a consignee on documentation for shipments. Subject to and without waiver of the objection above, Oak Way acts as an agent [for] NVOCCs and does not hold itself out to the general public to provide transportation or assume responsibility for the transportation from the port or point of receipt to the port or point of destination.

INTERROGATORY NO. 5: Describe in detail Oak's role including a description of its responsibilities, obligations and rights, in any shipments for which it is designated as a shipper on documentation for said shipments.

RESPONSE: Oak Way objects to this interrogatory because it presupposes that Oak is designated as a shipper on documentation for shipments. Subject to and without waiver of the objection above, Oak Way acts as an agent [for] NVOCCs and does not hold itself out to the general public to provide transportation or assume responsibility for the transportation from the port or point of receipt to the port or point of destination.

INTERROGATORY NO. 8: Identify all persons who had authority to direct, control, or access any bank account into which revenues from services performed using Way2Go's identity, credentials, or FMC license, were deposited.

RESPONSE: Oak Way objects to this Interrogatory as overbroad. The request for "all persons" is not limited to Oak Way and instead seeks information regarding unidentified third parties. Oak Way further objects that the Interrogatory seeks information that is not within Oak Way's knowledge or possession. Claimant Way2Go is the entity referenced in the Interrogatory and therefore is in the best position to identify any persons who had authority to direct, control, or access bank accounts into which revenues were deposited for services allegedly performed under its identity, credentials, or FMC license.

INTERROGATORY NO. 11: Describe in detail the events leading to Oak's access to, or control over, the ShipThis account originally created for Way2Go, including the dates and nature of such access or control.

RESPONSE: Oak Way objects to this Interrogatory on the ground that it improperly presupposes that Oak Way ever had access to or control over the ShipThis account originally created for Way2Go. Subject to and without waiving the foregoing objection, Diego de Sousa Santana and Raphael Alves had access to

Way2Go's ShipThis account while they were working for Way2Go. After they departed from Way2Go, neither Diego de Sousa Santana nor Raphael Alves accessed the ShipThis account.

INTERROGATORY NO. 17:³ Identify all shipments for which Way2Go was designated as consignee, notify party, shipper, billing party, or delivery party between January 1, 2025 and the date of your response, whether intentionally or unintentionally, and for each such shipment Identify: (a) shipper; (b) consignee; (c) notify party; (d) master B/L number; (e) house B/L number; (f) carrier; (g) whether Oak instructed any party to list Way2Go; and (h) all revenues generated.

RESPONSE: Oak Way objects to the Interrogatory as overbroad and seeking information that is not within Oak Way's knowledge or possession. To the extent any shipment listed Way2Go as consignee, notify party, shipper, billing party, or delivery party, such information would necessarily be reflected in Way2Go's own shipping record, not Oak Way's.

INTERROGATORY NO. 19: Identify all bank accounts into which payments from shipments managed, booked, or invoiced using Way2Go's identity, credentials, or FMC license were deposited, including the Bank of America account referenced in the Complaint, and Identify all persons with access to each account.

RESPONSE: Oak Way objects to this Interrogatory as duplicative of Interrogatory No. 8. Oak Way further objects that the Interrogatory seeks information that is not within Oak Way's knowledge or possession. Claimant Way2Go is the entity whose identity, credentials, or FMC license are referenced in the Interrogatory and therefore is in the best position to identify accounts into which payments for services performed under its identity, credentials, or FMC license were deposited.

The MTO is **GRANTED** as to Interrogatory Nos. 3, 4, and 5. Respondent answered these Interrogatories by stating that they presuppose that Respondent acts as a notify party, a consignee or a shipper; Respondent also indicated that it acts as an agent for a third party NVOCC. Respondent, however, does not deny that it was identified as a notify party, a consignee, or a shipper. Therefore, Respondent is required to answer Interrogatory Nos. 3, 4, and 5 by indicating whether it acted as a notify party, a consignee or a shipper and, if it did, by describing its role.

The MTO is **GRANTED** as to Interrogatory No. 8.⁴ Complainant alleges that Respondent was using Complainant's identity and credentials to perform services. Respondent does not deny this allegation, nor does it deny that it received any compensation from using Complainant's identity and credentials. Complainant, therefore, may learn the names of individuals who had authority to direct, control or access any bank account into which revenues

³ Interrogatory No. 18 is reproduced in the main text, at 7.

⁴ The MTO as to Interrogatory No. 18 was granted above.

from services performed using Complainant's identity, credentials or license, were deposited. Complainant may also learn about documents addressed to Complainant that were delivered to Respondent or its employees.

Respondent may answer Interrogatory Nos. 3, 4, 5, and 8 through the production of business records if doing so would provide a complete answer to these Interrogatories.

The MTO is **DENIED** regarding Interrogatory Nos. 2 and 11. Complainant alleges that Respondent was using Complainant's identity and credentials, including its ShipThis account. Therefore, Complainant may take discovery to prove these allegations (and, presumably, also prove that Respondent violated section 40901(a)). Complainant may also take discovery regarding whether Respondent is still using Complainant's identity and credentials. Interrogatory Nos. 2 and 11, however, presuppose that Complainant has established these allegations as fact. Respondent cannot answer these Interrogatories without implicitly admitting the assumed underlying facts, which Respondent is not required to do.

The MTO is **DENIED** as to Interrogatory Nos. 17 and 19. As worded, both Interrogatory No. 17 and 19 are overly broad, as they both ask about **all** shipments for which Complainant was designated as a consignee, notify party, shipper, billing party, or delivery party, and **all** bank accounts into which payment from shipments managed, booked or invoiced using Complainant's identity, credentials or license were deposited. I will not re-draft either Interrogatory to limit the scope to be relevant to this matter.

F. Request for Attorney's Fees

Finally, Complainant asks for attorney's fees pursuant to Rule 37 of the Federal Rules of Civil Procedure. (MTO, at 1, 5). I previously assumed, without deciding, that monetary sanctions may be available because I was able to deny Complainant's request for monetary sanctions by finding that Respondent's position was substantially justified. (*See* Order Granting in Part and Denying In Part Complainant's Motion to Compel Deposition of Respondent's Corporate Representative, and Denying Without Prejudice Respondent's Cross Motion for Protective Order, at 3). As Complainant now asks for attorney's fees pursuant to Rule 37 again, I address whether attorney's fees are available under Rule 37(a)(5) of the Federal Rules of Civil Procedure. I find that attorney's fees are not.

In general, an administrative agency has no more powers than those given to it by Congress. (*See Edaf Antillas, Inc. v. Crowley Caribbean Logistics, LLC*, Dkt. No. 14-04, 2015 WL 6274657, at *11 (ALJ Apr. 15, 2015) (notice not to review May 18, 2015) ("The Court began its analysis by recognizing that an agency's power is limited to that granted by Congress.")). Congress expressly gave power to the Commission to award attorney's fees to a prevailing party in an action brought pursuant to 46 U.S.C. § 40301. (46 U.S.C. § 41305(e)). The Commission may order payment of additional amounts for certain violations. (46 U.S.C. § 41305(c)). It may also impose monetary penalties. (46 U.S.C. § 41107(a)). But, Congress did not give the Commission authority to impose attorney's fees upon a party that loses a motion to compel.

I appreciate that Commission Rule 12 indicates that the Federal Rules of Civil Procedure may be utilized to the extent they are consistent with sound administrative practice. (46 C.F.R. § 502.12). But, as Congress has not given the Commission authority to impose attorney's fees for a party's losing a motion to compel, it appears that the attorney's fees provision of Rule 37(a)(5) of the Federal Rules is not consistent with sound administrative practice. Indeed, many of the provisions of the Federal Rules of Civil Procedure have been largely adopted by the Commission. For example, Rule 26 of the Federal Rules of Civil Procedure, which provides many basic discovery rules, including initial disclosures, expert discovery procedures, and the scope of discovery, is largely mirrored by Commission Rule 201. (46 C.F.R. § 502.201). Commission Rule 210, which addresses motions to compel, however, does not include provisions regarding attorney's fees, and thus markedly differs from Rule 37(a)(5) of the Federal Rules of Civil Procedure. Accordingly, Complainant's request for attorney's fees is **DENIED**.

III. CONCLUSION

As discussed above, it is **ORDERED** that Complainant's MTO is **GRANTED** as to Interrogatory Nos. 1, 3, 4, 5, 8, 12, 18 and RFP Nos. 2, 3, 5, 12, 13, 14, 15, 16, 19, 20, 23, 24, 25, 29, 30, 32, 33, 34, 35, 36, and 37. It is

FURTHER ORDERED that the MTO is **GRANTED IN PART** as to Interrogatory Nos. 15, 16, and 20, as well as RFP Nos. 6, 17, 18, and 38. These Interrogatories and RFPs are to be read as making NO REFERENCE to Oak Bridge Way (or "to or from" or "with" Oak Bridge Way, or Oak Bridge Way's principals, employees, contractors and agents). It is

FURTHER ORDERED that the MTO is **DENIED** as to Interrogatory Nos. 2, 6, 7, 9, 10 11, 13, 17, 19, and RFP Nos. 4 and 21. It is

FURTHER ORDERED that Complainant's request for attorney's fees is **DENIED**.

SO ORDERED

Richard C. Ambrow Jr -S

Richard Ambrow
Administrative Law Judge